

Judgment Sheet

IN THE LAHORE HIGH COURT
RAWALPINDI BENCH RAWALPINDI

(JUDICIAL DEPARTMENT)

C.R.No.675 of 2009

Rab Nawaz etc.

Vs.

Mumraiz Khan

JUDGMENT

Date of Hearing	05.05.2026
Petitioners by:	Sardar Bilal Firdous, Advocate
Respondent by:	M/s.Shaukat Aziz Siddiqui and Humble Murad Siddiqui, Advocates

Syed Ahsan Raza Kazmi, J. Through this single judgment, I intend to decide the instant Civil Revision as well as connected Civil Revision No. 499 of 2009, as both matters arise out of the same judgment and decree, involve the same parties, and raise common questions of law and fact. However, for the sake of convenience, reference shall be made to the facts and record of the instant Civil Revision.

2. This is the second round of litigation before this Court. In the first round, the matter travelled up to the Honourable Supreme Court of Pakistan, which, vide order dated 16.02.2026, remanded the case to this Court for decision of the Civil Revision on merits afresh.

3. Through the instant Civil Revision, the petitioners have assailed the judgments and decrees dated 15.06.2007 and 18.08.2009 passed by the learned Trial Court and learned Appellate Court, respectively. Through connected Civil Revision No. 499 of 2009, the respondent has challenged the judgment and decree dated 18.08.2009 passed by the learned Appellate Court on the ground that while the learned Appellate Court maintained the decree granted by the learned Trial Court, it erred in not decreeing the suit in respect of the entire suit property.

4. Briefly stated, the respondent instituted a suit for possession by way of pre-emption against the petitioners seeking pre-emption of the sale effected through Mutation No. 1960 dated 30.04.2005. The suit was

contested by the petitioners through filing of a written statement. From the divergent pleadings of the parties, issues were framed and both sides were afforded opportunities to adduce evidence. Upon conclusion of the trial and appraisal of the evidence, the learned Trial Court decreed the suit vide judgment and decree dated 15.06.2007. Feeling aggrieved, both parties preferred appeals before the learned Appellate Court, which were dismissed vide judgment and decree dated 18.08.2009. Hence, the instant Civil Revisions.

5. Learned counsel for the petitioners contends that the impugned judgments and decrees are contrary to law and facts available on the record. He submits that the respondent is neither a co-sharer in the suit property nor owner of any adjacent property conferring a superior right of pre-emption. He further argues that the respondent failed to establish strict compliance with the mandatory Talbs prescribed under the Punjab Pre-emption Act, 1991, but the Courts below failed to properly appreciate the evidence produced by the parties. He, therefore, prays for acceptance of the instant Civil Revision, setting aside of the impugned judgments and decrees, and dismissal of the suit.

6. Conversely, learned counsel for the respondent supports the findings recorded by the learned Trial Court but assails those portions of the judgment of the learned Appellate Court whereby the respondent's claim was not accepted in its entirety. He prays for setting aside of the judgment and decree of the learned Appellate Court to that extent and for decreeing the suit in respect of the whole of the suit property.

7. I have heard the learned counsel for the parties at considerable length and have gone through the record with their able assistance.

8. It is by now a settled proposition of law that the right of pre-emption is a weak and predatory right which places a restriction upon the otherwise unfettered right of an owner to transfer his property. Consequently, such right can only be enforced upon strict and literal compliance with the statutory requirements prescribed under the Punjab Pre-emption Act, 1991.

9. Section 13 of the Act prescribes the mode and manner for enforcement of the right of pre-emption and mandates performance of three Talbs, namely Talb-i-Muwathibat, Talb-i-Ishhad and Talb-i-Khasumat, in the prescribed sequence and within the stipulated time. Talb-i-Muwathibat requires the pre-emptor, immediately upon acquiring knowledge of the sale, to declare his intention to exercise the right of pre-emption in the same Majlis or meeting in which such information is received. Talb-i-Ishhad requires confirmation of such demand through a notice attested by two truthful witnesses and dispatched to the vendee within two weeks from the date of knowledge of the sale. Talb-i-Khasumat consists of institution of the suit for enforcement of the right. It is equally well settled that the burden to establish strict compliance with these mandatory requirements rests squarely upon the pre-emptor and any doubt or ambiguity in this regard must operate in favour of the vendee.

10. To prove Talb-i-Muwathibat, the respondent appeared as PW-4 and deposed that he was serving in the Pakistan Army and returned home on 23.06.2005, whereupon one Mian Ahmed informed him about the impugned sale in favour of respondent. The exact wording of the respondent No.1 is as under:-

"میں مورخہ 23.06.2005 کو چھٹی پر گھر آیا تو میرے گھر پر
میاں احمد رات سوا آٹھ بجے مجھے ملا اور اس نے بیع متدیہ کے
بارے میں بتایا اور کہا کہ اسکے مالی حالات ٹھیک نہیں اس لیے
وہ نہیں لے سکتا لہذا اس نے کہا کہ میں لوں گا اور کس نے اعلان
شفع کیا اور مورخہ 24.06.2005 کو نوٹس لکھوائے جو مورخہ
25.06.2005 کو مدعا علیہم کو بذریعہ رجسٹرڈ ڈاک ارسال
کئے"

11. A careful reading of the aforesaid statement reveals that the respondent failed to establish the basic source from which the informer allegedly acquired knowledge of the sale. The respondent himself admitted that Mian Ahmed did not disclose the source of such knowledge. Although Mian Ahmed subsequently appeared as PW-5 and stated that one Bashir Ahmed had informed him regarding the sale, he thereafter admitted that his deposition regarding the consideration was

based on hearsay information. These contradictory statements materially impair the credibility of the respondent's version.

12. Needless to observe that in a suit for pre-emption, it is incumbent upon the pre-emptor to establish not only the factum of knowledge but also the complete chain through which such knowledge was acquired. Failure to establish the source and transmission of information is fatal to the claim. Reliance in this regard may safely be placed upon Suhanuddin and others vs. Pir Ghulam (PLD 2015 SC 69), Farid ullah Khan vs. Irfan ullah Khan (2022 SCMR 1231) and Muhammad Riaz vs. Muhammad Akram and others (2024 SCMR 692). The relevant portion of Muhammad Riaz's case supra is reproduced as under:-

“....We believe that the fact of the sale of the suit land is a fact that can be seen, such as, by observing or taking part in the sale transaction or by seeing the sale deed or sale mutation. The person who conveys the information of the fact of sale must be a person who has observed the fact of sale and it is he who can then pass on the said fact to another person(s). Thus, the chain of information regarding the sale, starting from the very first person with direct knowledge and passing it on to the person who lastly informs the pre-emptor, must be complete. Only the complete chain of the source of information of the sale can establish the essential elements of Talb-1-Muwathibat, which are: (i) the time, date and place when the pre-emptor obtained the first information of the sale, and; (ii) the immediate declaration of his intention by the pre-emptor to exercise his right of pre-emption, then and there, on obtaining such information. Reference in this regard may be made to the case of Farid Ullah Khan v. Irfan Ullah Khan (2022 SCMR 1231). In the present case, such chain of the source of passing on the information, as to the fact of the sale of the suit land has not been proved as Muhammad Basharat Ali has categorically refused to meet and share the information about the sale of the suit land with Ghulam Mustafa (the informer). The entire case of the respondents regarding the issuance of Talb-i-Muwathibat built on the hearsay evidence of Ghulam Mustafa (the informer) falls to the ground due to an incomplete chain of information about the sale of the suit land. Therefore, the learned trial Court correctly observed that when the source of information provided by the informer is not proved, the transmission of this information to the respondents also becomes highly doubtful. However, both the learned first appellate court and the learned High Court failed to take note of this important fact of the matter and set aside the judgment and decree of the learned trial court. Therefore, we feel no hesitation to hold that the respondents failed to prove the

validity of Talb-i-Muwathibat made by them for exercising their right of pre-emption over the suit land.”

13. Beside the above contradictions the petitioner also failed to specify the exact place of his house where he got the alleged knowledge of sale. It is a cardinal requirement of law that the pre-emptor must clearly establish the exact date, time and place where he first acquired knowledge of the sale. The immediacy of *Talb-i-Muwathibat* can only be assessed when the precise place or Majlis where such knowledge was conveyed is clearly established. In the present case, the petitioner failed to clearly specify the exact place where the information of the sale was communicated, thereby rendering his version vague and unreliable. Guidance can be sought in this respect from the case-law titled as “ALLAH DITTA through L.Rs. and others Vs. MUHAMMAD ANAR” (2013 SCMR 866) and Muhammad Anayat vs. Muhammad Razzaq (PLJ 2026 Lahore 124).

14. Furthermore, even if the respondent’s version is accepted at face value, the evidence does not establish immediate performance of *Talb-i-Muwathibat*. According to the respondent himself, after informing him about the sale, Mian Ahmed further stated that due to his weak financial position he was unable to purchase the property and instead suggested that the respondent may do so. It was only thereafter that the respondent allegedly expressed his intention to exercise the right of pre-emption. Such evidence does not satisfy the requirement of immediate and spontaneous assertion of the right contemplated under law. In *Muhammad Riaz* case supra it was held as under:-

“9. It is evident from the record that there is no dispute regarding the making of Talb-i-Muwathibat by both respondents. However, a delay of one or two minutes surfaces in the case of respondent No. 2. Upon a careful examination of the portion of the evidence of the PW-2 (the informer), as reproduced by the learned trial court in its judgment, it becomes apparent that respondent No. 1 initiated Talb-i-Muwathibat first, followed by respondent No. 2. It can be inferred that respondent No. 2 waited for respondent No. 1 to complete his declaration of Talb-i-Muwathibat.”

15. The testimony of PWs creates further doubt regarding the respondent’s plea of delayed knowledge. PW-4 (respondent) admitted that he and PW-5 (informer) were members of a joint family residing in the same house and PW-5 stated that all members of the family, except

the respondent's wife, were aware of the impugned transaction. He further stated that the respondent, being posted far away due to his service, was informed about the sale only upon his return during leave. This version does not inspire confidence. In a joint family setup, where all members are admittedly aware of a transaction involving family property, it is highly improbable that such information would not be conveyed to the respondent at the earliest opportunity. In the ordinary course of human conduct, a transaction of such significance would have been communicated without delay. Consequently, the plea that the respondent remained unaware of the sale until his return home appears inherently improbable. The circumstances strongly suggest that the respondent had knowledge of the sale much earlier than alleged.

16. Attending to Talb-i-Ishhad, it is observed that the respondent failed to mention in his examination-in-chief the names of the witnesses who allegedly attested the notice of Talb-i-Ishhad. Significantly, even in the plaint, the names of such witnesses were not disclosed. It is settled law that a pre-emptor is required not only to plead but also to prove all material particulars relating to the performance of Talb-i-Ishhad, including the identity of the attesting witnesses. Failure to do so constitutes a serious defect in the claim. Reliance is placed upon the judgment reported as Kashmali Khan and others vs. Mst.Malalla (2023 SCMR 1176).

17. There is yet another aspect of the matter. The respondent produced copies of the alleged notices of Talb-i-Ishhad as exhibits without obtaining permission of the Court for leading secondary evidence. The learned Appellate Court observed that where no objection is raised at the relevant stage, secondary evidence may be received without formal permission. However, it is equally settled that every case must be decided on its own facts and circumstances. In Muhammad Akram and another vs. Mst.Fareeda Bibi and others (2007 SCMR 1719) it was held that Court is duty bound to look into a document produced on record---even if no objection was taken by the other side when the document was exhibited, the Court is not prevented from adjudicating its nature, whether it is valid or not, or whether it is fake or not. Furthermore, in the judgment report as Sher Asfandiyar Khan etc.

vs. Neelofar Shah etc. (PLJ 2025 SC 322), has reiterated that strict compliance with Article 76 of the Qanun-e-Shahadat Order, 1984, is mandatory and that secondary evidence brought on the record in violation thereof loses its evidentiary value. Consequently, the alleged notices of Talb-i-Ishhad cannot be accorded any meaningful evidentiary worth.

18. It is a settled principle that in suits for pre-emption, even minor discrepancies relating to the performance of Talbs assume considerable significance because the entire claim rests upon strict compliance with statutory requirements. The contradictions and deficiencies noted above cast serious doubt upon the alleged performance of both Talb-i-Muwathibat and Talb-i-Ishhad. In Abdul Majeed and others vs. Haji Haq Nawaz (2026 SCMR 138) the Honouable Supreme Court of Pakistan has observed as under:-

4. It is now firmly established that if any doubt arises regarding the execution of the talbs, the benefit of that doubt must favour the vendee. Given these circumstances, the inescapable conclusion is that the respondent-plaintiff had failed to prove the execution of Talb-i-Muwathibat.

The cumulative effect of the evidence discussed above leaves no room for doubt that the respondent failed to establish strict compliance with the mandatory Talbs as required under the Punjab Pre-emption Act, 1991. The findings recorded by both the Courts below are the result of misreading and non-reading of material evidence and, therefore, cannot be sustained.

19. While concurrent findings of the courts below are entitled to great weight and are not to be lightly disturbed in revisional jurisdiction, this rule is subject to a well-recognized exception. Where such findings are demonstrably based on misreading or non-reading of material evidence, or suffer from patent perversity, they constitute an error of law warranting interference by this Court. A finding reached by ignoring material evidence or by placing reliance upon an erroneous reading of the record cannot be allowed to stand, as the same results in a manifest miscarriage of justice. Consequently, such concurrent findings are liable to be set aside notwithstanding the limited scope of revisional

jurisdiction. Reliance can be placed on Habib ur Rehman and others vs. Abdul Karim (deceased) through L.Rs. and others (2025 SCMR 1262).

20. Consequently, the instant Civil Revision is **allowed**. The judgments and decrees dated 15.06.2007 and 18.08.2009 passed by the learned Courts below are **set aside**, and the suit instituted by the respondent for possession by way of pre-emption is **dismissed**.

21. As a necessary consequence of the above finding, Civil Revision No. 499 of 2009 filed by the respondent has become devoid of merit and is accordingly **dismissed**.

(Syed Ahsan Raza Kazmi)
Judge

Approved for reporting.

Judge

Amjad